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ONE PLUS ONE MAKES
THREE: BUDDHIST
GENDER, MONASTICISM,
AND THE LAW OF THE
NON-EXCLUDED MIDDLE

This article addresses the need for a more specific account than we now have of how the female is conceived in Buddhism. One reason for providing such an account is so that we can better construe what has variously been perceived as the misogyny of Buddhist traditions, on the one hand, and the deification of a feminine principle in Buddhism, on the other.¹ These perceptions have important ramifications as they bear on some difficult issues that are live in Buddhist communities today. One of those would be the controversial status of women in the practice of tantric sexual yoga, and another has to do with sex and gender hierarchies in Buddhist monasticism; I will be touching on the latter, but not the former, in the present article.

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¹ Works critical of Buddhist misogyny and androcentrism include Diana Paul, *Women in Buddhism* (Berkeley: Asian Humanities Press, 1979); Liz Wilson, *Charming Cadavers: Horrific Figurations of the Feminine in Indian Buddhist Hagiographic Literature* (Chicago: University of Chicago Press, 1996); Chatsumarn Kabilsingh, *Thai Women in Buddhism* (Berkeley: Parallax, 1991); Rita M. Gross, *Buddhism after Patriarchy: A Feminist History, Analysis, and Reconstruction of Buddhism* (Albany: State University of New York Press, 1993); and June Campbell, *Traveller in Space: In Search of Female Identity in Tibetan Buddhism* (London: Athlone, 1996). Books that take encouragement from Buddhist deifications of the feminine principle include Miranda Shaw, *Passionate Enlightenment: Women in Tantric Buddhism in India* (Princeton, N.J.: Princeton University Press, 1994); and Judith Simmer-Brown, *Dakini's Warm Breath: The Feminine Principle in Tibetan Buddhism* (Boston: Shambhala, 2001).

But just as much as for contemporary concerns, I am interested in the matter of sex and gender for other reasons too. I find the complex—and often inextricable—relation between gender conception and sexual anatomy to be an exceptionally rich resource, not only for theory, but also for ethical reflection. Such reflection might even have salutary impact on the contemporary issues to which I just alluded. Mind you, it is only barely the case that we can say that a notion of gender as such is explicitly identified in the sources I am looking at here. With the exception of one novel usage that does indeed seem to overlap with the function of the modern sense of gender, the traditional categories I explore in what follows seem to have been understood, perhaps unreflectively, as being based specifically upon sexual characteristics. Hence I have largely used the word “sex” to refer to those categories. Even these, however, came in many contexts to take on a metaphorical rather than strictly physicalistic denotation. Such metaphorical application already inches those categories over into the domain of what we now understand to be gender—not to mention the fact that even strict anatomical specification about sexual identity is relative and culturally constructed. Thus an occasional invocation of the idea of gender serves here to organize and highlight retrospectively the significance of a group of historical concepts and practices. To identify notions of gender in this way can provide a useful window on certain Buddhist understandings of body, personal identity, and religious meaning.

It might also be noted from the outset that this article endeavors to address a historical problem in part by a certain ahistoricism. This ahistoricism consists in taking an inchoate family of concepts from a small group of texts and, from a fairly limited period and speculating on the import of that conceptual family on the basis of how it developed later, that is, by reading back into the earlier formulation elements of how it came to be elaborated. Such a method is certainly not one that I would argue is always a good thing to do—in fact, not even one that is usually a good thing to do, especially if what one is trying to get at are the dynamics of a particular historical moment. However, in this particular case—where the early inchoate conceptual family is in fact itself about inchoateness, leading to a systematic fuzziness throughout its history; where, too, the later elaborations seem to stay close to the spirit of the earlier context and in fact salient clues from that later material draw our attention to things in the earlier material that we might not have noticed otherwise; and where, finally, we really have very little data to work with from that earlier moment in the first place—perhaps the method is felicitous.

I

The founding moment of what is at stake here would be an early pronouncement on the nature of the female that occurs in the course of a fa-

mous interchange that is ascribed to the Buddha and his disciple Ānanda.² It concerned the ordination of women into the monastic order. The Buddha is said to have refused at first. When pushed by Ānanda the Buddha conceded that, yes, women could indeed attain enlightenment, but their presence in the order would render Buddhism vulnerable to quicker deterioration than it would have been without women in the order. Women monastics would act like rust, or mildew, to weaken the Dharma. Hence their necessary patriarchal subordination, which came to be enshrined as the famous Eight Heavy Rules, pronounced by the Buddha as his condition for agreeing to ordain women after all. In brief, the Eight Heavies legislate that all nuns must defer to all monks and accept them as their ritual and authoritative superiors, no matter what the discrepancies in seniority or merit.³

This settlement has been understood by modern scholars as a nod to the demands of Indian society, and it reminds us of the central importance that the early Buddhist order gave to its public status and image in order to maintain the support of the laity. The idea is that these lay supporters would have been disturbed by the formation of a community of independent, single women and that they would be mollified—and, most crucially, would continue to respect and underwrite the order—by the reinscription of such celibate women in a submissive relationship to their male masters. Now this assessment certainly has merit, but it is by this point a truism, too easy as an explanation of all androcentrism and misogyny in Indian Buddhism. Given the stakes, the matter deserves further consideration: the Eight Heavies arguably are one of the key factors in the eventual demise of the fully ordained female order in almost every Buddhist country save China.⁴ Indeed, the issue of status is especially germane today, at least

² Versions of this story and the Eight Heavy Rules appear to be present in all of our extant versions of the Vinaya. See Gustav Roth, *Bhikṣuṇī-Vinaya: Manual of Discipline for Buddhist Nuns* (Patna: K. P. Jayaswal Research Institute, 1970), pp. xxix–xxxi. See also Akira Hirakawa, *Monastic Discipline for the Buddhist Nuns: An English Translation of the Chinese Text of the Mahāsāṃghika-Bhikṣuṇī-Vinaya* (Patna: K. P. Jayaswal Research Institute, 1982), pp. 47–49, nn. 2 and 6. Anne Hiermann, “Chinese Nuns and Their Ordination in the Fifth Century,” *Journal of the International Association of Buddhist Studies* 24, no. 2 (2001): 275–304, n. 41, has pointed out that Jan Nattier (*Once upon a Future Time: Studies in a Buddhist Prophecy of Decline* [Berkeley: Asian Humanities Press, 1991], p. 30, n. 12), was mistaken in asserting that the story postdates the Sthavira-Mahāsāṃghika split. However, Nattier maintains that the Mahāsāṃghika version of the story is garbled, suggesting it is a later interpolation (personal communication, November 6, 2002).

³ The order of the rules varies somewhat. See Roth, p. xxxii, for the list according to the Mahāsāṃghika Vinaya. The Pali version is in *Cullavagga* 10.1.1–6 (translated in I. B. Horner, trans., *The Book of the Discipline [Vinaya-Piṭaka]* [London: Pali Text Society, 1942], 5:352).

⁴ See, e.g., Nancy Auer Falk, “The Case of the Vanishing Nuns: The Fruits of Ambivalence in Ancient Indian Buddhism,” *Unspoken Worlds: Women’s Religious Lives*, ed. Nancy Auer Falk and Rita M. Gross (Belmont, Calif.: Wadsworth, 1989), pp. 207–24. Gregory Schopen has made important contributions to our understanding of the competition between

for that portion of the women, both Asian and Western, who are currently attempting to revitalize the Buddhist nun's order as informed by a feminist sensibility. How are such modern female reformers going to be able to genuflect to the youngest male novice simply because he is a male—and therefore supposedly superior to them?⁵ And yet if they fail to do so, how can they claim to be upholding the orthodox discipline with impunity, which is precisely what they need to do in order to regain legitimacy for the female order? Hence the possible edification in taking a closer look, not only at how exactly it was imagined that women would undermine the order in the first place, but also at what the very idea of woman represents here. Such an investigation will need to take account of both what is actually said about women, as well as the more abstract yet always revealing question of what the category of woman is defined *against*, that is, what it is defined *in contrast to*—especially in the specific context of Buddhist monasticism and the systems of ideology and practice to which it connects.

The focus of this study turns precisely on this point about definition, particularly definition *in contrast to*. It is interesting to notice that in Buddhist monasticism women were not only distinguished from men, their superiors and mentors in the order. They were also differentiated from another class of persons, persons who cannot receive ordination under any circumstances. This special class of persons who are barred from ordination includes several types of persons, but it is one such subgroup, whose description comprises the outermost bounds in sex and/or gender depiction (again, sex and gender are only partially distinguishable here), that deserves particularly close examination. This is a category of persons who are excluded from ordination on the grounds of their sex. It is my view that they can help us to appreciate the status of “normal” women in the Vinaya's rules as well. Challenging as this subgroup is to decipher, such examples at the edge take on a surplus of social meaning and provide a telling view of the terrain of sex and gender conceptions in the Vinaya overall, along with some broader insights into the implications of such conceptions.

monks and nuns in the early centuries C.E., as well as the active role of nuns in the image cult and patronage before their demise. See his “On Monks, Nuns, and ‘Vulgar’ Practices: The Introduction of the Image Cult into Indian Buddhism,” in Gregory Schopen, *Bones, Stones and Buddhist Monks: Collected Papers on the Archaeology, Epigraphy and Texts of Monastic Buddhism in India* (Honolulu: University of Hawai'i Press, 1997), pp. 238–57, and “The Suppression of Nuns and the Ritual Murder of Their Special Dead in Two Buddhist Monastic Texts,” *Journal of Indian Philosophy* 24 (1996): 563–92.

⁵ For impressive stories of twentieth century Thai nuns Voramai and Sara and Chongdi Bhasit, who acted on feminist sentiments, see Kabilsingh, *Thai Women in Buddhism*. And yet many modern and international bhikṣuṇīs produce apologies for the Eight Heavy Rules. See, e.g., Venerable Bhiksuni Wu Yin, *Choosing Simplicity: Commentary on the Bhikṣuṇi Pratimoksha* (Ithaca, N.Y.: Snowlion Publications, 2001), pp. 81–89.

As for the larger class of those forbidden ordination in the early Vinaya (of which the subgroup under discussion is a part), we can readily understand why the sangha would have barred those who commit major crimes like murder, as well as those who lack permission from their parents or other masters, or who are fugitives from the law, or who are animals.⁶ Another group of disqualifications is based on physical criteria: dwarfs, those missing a limb, the blind, the deaf, those with boils, or leprosy; all these may not join the order.⁷ It would seem to be with these physically deficient types that the sexually marginal subgroup should be classed.⁸ And yet why people whose sexuality is deficient or aberrant may not be ordained into the Buddhist order is not immediately evident. Little is said by way of explanation, but it becomes increasingly clear that more is at work here than a mere avoidance, on the part of the order, of embarrassing or unattractive abnormalities.

II

What information do we have about this subgroup of sexual excludées? Unfortunately, there is little information about actual individuals who were in this class. There are several stories and passages that suggest the defilement or dangerousness of such persons, but these say more about the conception of the group as a whole than about particular individuals; most certainly, none of these passages give a sense of actual historical people.⁹ However, the fact that the Āyurvedic (and closely related Tibetan)

⁶ The list of what disqualifies a man from receiving ordination (P., *antarāyikā dhammā*; Tib., *bar chad* [the “impediments”]) varies significantly, but it often includes some of the serious *ānantarika* crimes such as murder of parents or an arhat. Lists from Pali Vinaya tradition may be found in *Mahavagga* 1.61; 2.22; 2.36.3; 8.30; 9.4.2 (translated in *Mahavagga* in I. B. Horner, trans., *The Book of the Discipline* [*Vinaya-Piṭaka*] [Oxford: Pali Text Society, 1951], vol. 4). For Mūlasarvāstivāda Vinaya lists, see *Vinayavastu*, Asian Classics Input Project (hereafter ACIP), Release 4 (New York, 1998), text KDOOO111.ACT, p. 73; and *Vinaya-Sūtra and Auto-Commentary on the Same by Guṇaprabha*. *Pravrajyā-vastu*, ed. P. V. Bapat and V. V. Gokhale (Patna: K. P. Jayaswal Research Institute, 1982), sūtras 117–54. Comparative remarks on the Dharmagupta Caturvargika Vinaya provided in P. V. Bapat with A. Hirakawa, trans., *Shan-Chien-P'i-P'o-Sha, a Chinese Version by Saṅghabhadra of Samantapāsādikā* (Poona: Bhandarkar Oriental Research Institute, 1970), p. li. The list of impediments to ordination for women is different, but it often includes more specifications of kinds of sexual ambiguity: *Cullavagga* 10.17.1; Roth, pp. 31–33; Hirakawa, pp. 61–62. See n. 71 below.

⁷ Some of these listed in *Mahavagga* 1.71, 76.

⁸ But in *Mahavagga* at least, being a *paṇḍaka* or hermaphrodite is listed with the first group, those who have committed crimes.

⁹ The *Therīgāthā* tells that one of the past lives of Isidāsī was born as neither a male nor a female (*n'eva mahilā na purisa*), this condition being the fruit of bad karma: *The Thera- and Therī-gāthā*, ed. Hermann Oldenberg and Richard Pischel (London: Pali Text Society, 1883), p. 166 (translated in C. A. F. Rhys Davids and K. R. Norman, trans., *Poems of Early Buddhist Nuns* [*Therīgāthā*] [Oxford: Pali Text Society, 1981], p. 140). *Mahavagga* 1.61 relates how a *paṇḍaka* tried to induce monks, novices, and grooms to defile him (it is not specified what that would entail) upon which he was pronounced unchaste and not to be ordained. A

medical tradition quite standardly speaks of three, rather than two, options for the sex of a newly born baby does tell us that an empirically observable third sex was believed to exist in the general period under discussion.¹⁰ In fact, this medical conception of a “third sex” turns out to be closely related to the class of sexual pariahs in Buddhist monasticism.

The early monastic sources provide several subtypes within the group of people excluded from male ordination on sexual grounds. These usually include the hermaphrodite (*ubhatovyañjanaka*), a class of people called *pañḍaka*, and sometimes a class of people called *śaṇḍha*. Neither of the latter terms seem ever to be precisely defined; but as the Vinaya tradition develops, *pañḍaka* becomes the term of choice that most often stands for the excluded third sex category as a whole. The category also comes up in the exclusions for female ordination. Women with various kinds of deficiencies or irregularities in their menstrual cycle are listed here along with other types, one of which, in several versions of the list, is the “woman *pañḍaka*.” This indicates that there can be both male and female *pañḍakas*; indeed, with the growing proliferation of subtypes within the sexually excluded class, one of the several ambiguities is whether these various terms refer to deviation from maleness, deviation from femaleness, or both.¹¹

story in *Vinayavastu* tells of a *pañḍaka* who wanted to take ordination so as to have opportunities for sex: ACIP text KDOOO111.ACT, pp. 131–32.

¹⁰ The *Śārirasthāna* of *Carakasamhitā* assumes that there are three possible sexes of a child: male, female, and neuter (lit., “not male” [*napuṃsakam*]). The latter is specified by the commentary *Āyurvedadīpikā* to have a simple hole instead of a penis. See *Carakasamhitā Śārirasthāna* 4.10 and 14: Agniveśa, *Caraka Samhitā, Based on Cakrapāṇi Datta’s Āyurveda Dipikā*, ed. and trans. Ram Karan Sharma and Vaidya Bhagwan Dash (Varanasi: Chowkamba Sanskrit Series Office, 1976), 2:391, 393–94. Chapter 2 of the same *Śārirasthāna* only envisions two sexes for the newborn, male and female, but lists eight types of sexual abnormality between them: see n. 14 below. Compare the classical Tibetan medical text, probably codified in the twelfth century C.E.: *bDud rtsi snying po yan lag brgyad pa gsang ba man ngag gi rgyud* (hereafter *rGyud bzhi*) (Lhasa: Bod-ljongs Mi-dmangs dPe-skrun-khang, 1992), pp. 17, 29. The term *napuṃsaka* is used occasionally for the third sex in Buddhist sources as well: see n. 11 below.

¹¹ The root Pali Vinaya texts usually mention only two main types of sexual excludées, *pañḍakas* and hermaphrodites (*ubhatovyañjanaka*), as in *Mahavagga* 1.61, 68, 69; see also *Milindapañha with Milinda-ñikā*, ed. V. Trenckner and P. S. Jaini (Oxford: Pali Text Society, 1986), pp. 310, 94–95 (I. B. Horner, trans., *Milinda’s Questions*, 2 vols. [Oxford: Pali Text Society, 1963–64]). The Mūlasarvāstivāda *Vinayavastu* regularly mentions the *śaṇḍha* (alternately, *śaṇḍa*) (Tib. *za ma*) along with the *pañḍaka*. Vasubandhu lists *śaṇḍha*, *pañḍaka*, and *ubhatovyañjanaka* as the three kinds of people excluded from ordination on sexual grounds: *Abhidharmakośam Bhāṣya Sphuṭārthā Sahitam*, ed. Swami Swarikadas Shastri (Varanasi: Bauddha Bharati, 1970), 2.1.c (1:137). But other than *Suttavibhanga* 1.9.1 (translated in Horner, *The Book of the Discipline [Vinaya Piṭaka]* [London: Oxford University Press, 1938], vols. 1–3), which specifies that there may be human, nonhuman, or animal *pañḍakas*, I have found no definitions of the terms *pañḍaka* or *śaṇḍha* as such until Yaśomitra, who distinguishes *śaṇḍhaka*, one who lacks either female or male genitals *by nature*, from the *pañḍaka*, whose aberrational sex is due either to something undertaken on purpose or to disease or injury: *Sphuṭārthā Abhidharmakośa-vyākhyā of Yaśomitra*, ed. Narendranath Law (Lon-

The classic Indian medical work *Carakasamhitā* probably represents a more mainstream Indic tendency to consider the third sex a deviation from maleness in dubbing the condition *napuṃsaka*, “not-male,” but here too, Ayurveda tradition also gives indication of female varieties of this growing class of sexual aberration.¹² In general, the medical tradition attributes the third sex state to physical conditions, such as there being an equal balance of this person’s mother’s and father’s seeds.¹³ Like the monastic sources, the medical sources recognize a variety of sexual aberrations rather than portraying such a phenomenon as uniform, mentioning not only hermaphroditism but also congenital sexual dysfunctions, infertilities, and the absence of sexual organs altogether.¹⁴ The medical tradition

don: Luzac & Co., 1949), p. 94. The terms *ṣaṇḍa/ka*, *ṣaṇḍha/ka*, and *ṣāṇḍya* are also known to the classical Ayurvedic tradition, as in *Carakasamhitā Śārīrasthāna* 2.21 and *Suśrutasamhitā Śārīrasthāna* 2.41–42, 44. See also nn. 74–76 below. On the set of five kinds of *pañḍaka*, see n. 16 below, but even there the term is not defined as such. An instance where the term *pañḍaka* stands for the class of sexual anomalies as a whole may be found in the Mūlasarvāstivāda *Vinayavibhanga* where it repeatedly forms a trio with male and female in the specifications of kinds of proscribed sex. But the analogous Pali text, *Suttavibhanga*, regularly lists instead four kinds of people with whom sex is forbidden: males, females, *pañḍakas*, and hermaphrodites. *Cullavagga* 10.17 and other lists of disqualifications for female ordinands (see n. 6 above and n. 71 below) confirm that there can be a woman *pañḍaka*. *Vinayavibhanga* also regularly distinguishes the category of male *pañḍaka* (Tib. *ma ning pho*). *Pañḍaka* is defined by Sir Monier Monier-Williams, *A Sanskrit English Dictionary*, new ed. (London: Oxford University Press, 1956) as a weakling or eunuch. “Eunuch” is a common translation for *pañḍaka*, but this is clearly inadequate to cover its semantic range. Leonard Zwilling, “Homosexuality as Seen in Indian Buddhist Texts,” in *Buddhism, Sexuality, and Gender*, ed. Jose Cabezon (Albany: State University of New York Press, 1992), p. 204, asks if the etymology could be from *apa* + *aṇḍa* + *ka*, “with (eggs =) testicles (taken) away.” But Steven Collins (personal communication, February 20, 2001) rejects this theory since there is no other example of *apa* → *pa* in Pali even if *api* → *pi* is common. Other labels for sexual anomalies that merit exclusion from ordination are also to be found in the root Vinaya texts. For example, *Vinayavastu* (ACIP text KDOOO111.ACT, p. 69), characterizes the three kinds of anomaly as the state of lacking genitals (*mtshan med* = *animitta*), of having two genitals (*mtshan gnyis* = *dvinimitta*? or *ubhatovyañjanaka*), and of being a *gle* ‘dams, which can refer either to a castrated man or to a woman whose vagina and anus are joined (= *sambhinnavyañjanā*, see also n. 70 below). Occasionally the term *napuṃsaka* is also used in Buddhist sources for sexual anomaly: *Paramatthadīpanī: Dhammapāla’s Commentary on the Therīgāthā*, ed. E. Müller (London: Pali Text Society, 1893), p. 260. Other terms from Mūlasarvāstivāda tradition may be culled from *Mahāvīyutpatti*, ed. R. Sasaki, 2 vols. (Tokyo: Suzuki Gakujutsu Zaidan, 1965), including *vātāṇḍa*, *ekāṇḍa*, *anāṇḍa*, *puruṣānukṛtistṛī*, *stryānukṛtipuruṣa*, *aṇḍalāṅgulapraticchanna*, *sadāprasravaṇī*, *alohinī*, and *naimittikī*. A widely used Indic term for the sexually anomalous person is *kliba*, but it does not seem to occur in Buddhist sources: see Wendy Doniger, *Splitting the Difference: Gender and Myth in Ancient Greece and India* (Chicago: University of Chicago, 1991), pp. 79–85. Compare n. 14 below.

¹² *Suśrutasamhitā Śārīrasthāna* 2.43 refers to the conditions for the birth of a female who acts like a man, and a comment on *Suśrutasamhitā Śārīrasthāna* 2.45 asserts that there are both female (*nārī*-) and male (*nara*-) kinds of *ṣaṇḍhas*: Priya Vrat Sharma, ed. and trans., *Suśruta-samhitā* (Varanasi: Chaukhambha Visvabharati, 2000), 2:137.

¹³ On the balance of the parents’ seeds see *Carakasamhitā Śārīrasthāna* 2.18; the same view is echoed in Tibetan medical tradition.

¹⁴ *Carakasamhitā Śārīrasthāna* 2.17–21 indicates eight types of sexual abnormality: (1) Hermaphroditism (*dviretas*) resulting from a vitiation of the embryo’s genital cells and an equal division of the parent’s sperm and ovum. (2) A wind condition of the organ

also describes certain congenital irregularities in sexual practice, some of which anticipate an interesting list of five kinds of *pañḍakas* found in certain Buddhist monastic sources; but while the medical sources attribute all such anomalies to abnormal physical causes, the Buddhist sources seem less certain about the etiology of these states.¹⁵

A monastic list that focuses on kinds of *pañḍakas* in particular seems to emerge in the early centuries C.E. in several Buddhist traditions, but its precise chronology is unclear.¹⁶ The list singles out five main types: those

(*pavanendriyatva*) resulting from a wind (*vāyu*) problem in the testicles of the foetus. (3) A condition of weak sexual desire (*saṃskāravāha*) caused by a wind obstruction in the seminal passage. (4 and 5) A sexually deficient state (*kliba*) in either males or female caused by weakness or insufficient seminal substances in the parents. (6) Bent shape (*vakri*) of the male organ, caused by weakness of the father's organ and a resistance to sex on the part of the mother. (7) A condition in which pleasure derives from jealousy (in watching others have sex) (*irṣyati*), a proclivity produced by the parents' jealousy and reduced arousal. (8) The congenital state of being a eunuch, caused by a wind or fire condition that destroys the testicles (*vātikaṣaṇḍaka*).

¹⁵ In addition to the *irṣyati* mentioned in *Carakasamhitā*, *Suśrutasaṃhitā Śārīrasthāna* 2.38–41 also describes other congenital aberrations in sexual practice: *āsekyā*, the condition, due to weak seminal substances in the parents, in which one gets an erection from consuming the semen of others; *saugandhika*, the condition in which one is aroused by the smell of female and male genitals, a result of being born from a putrid vagina; and *kumbhika*, the condition in which one is aroused by receiving anal penetration. Compare the *irṣyati* and *āsekyā* *pañḍakas* in the Buddhist monastic descriptions in n. 16 below. On the Ayurvedic attribution of all such conditions to the person's parents, see *Suśrutasaṃhitā Śārīrasthāna* 2:47.

¹⁶ The earliest source I have found would seem to be *Vinayavastu*, from the Mūlasarvāstivāda Vinaya (ACIP text KDOOO111.ACT, p. 132), although the date of this text is not known. The list is absent in the Pali Vinaya root texts and seems first to emerge in Pali in Buddhaghosa's Vinaya commentary, *Samantapāsādikā* (ed. J. Takakusku [Oxford: Pali Text Society, 1924; reprint, 1999], p. 1016). These two examples of the list diverge in their understanding of some of the types. The Mūlasarvāstivāda list is also represented in Gunaprabha's *Vinaya-Sūtra*, sutras 130–33; see also sutra 18. A later source is Yaśomitra's commentary on *Abhidharmakośa* 2.1, where he traces the list specifically to the Vinaya, but distinguishes an Abhidharma view of the *pañḍaka*, which would focus on the (dys)function of the sexual faculty or organ (*indriya*): *Sphuṭārtha*, pp. 94–95; cf. n. 52 below. The list of five is as follows: (1) The *Vinayavastu*'s *jāti-* or *jātyāpañḍaka* (*skyes nas ma ning*), a congenital condition in which the infant is neither male nor female, corresponds to the *Samantapāsādikā*'s *napuṃsaka*, a child born without determinate gender. Yaśomitra calls this the *prakṛtipañḍaka*. Compare the use of the term *jātinapuṃsaka*: *Paramatthadīpani* (see n. 11 above), p. 271. (2) The *Vinayavastu*'s *paṣṣapañḍaka* (*zla ba phyed pa'i ma ning*), someone who is a female half the month and a male for the other half, corresponds to the *Samantapāsādikā*'s *pakkhapañḍaka*, here explained as someone who, as a result of bad karma, is a *pañḍaka* for the dark half of the month but is relieved of their sexual cravings in the light half. On changing sex, see nn. 61–66 below. One Tibetan exegete explains this monthly cycle entirely in terms of sexual desire: this *pañḍaka* has male sexual desire for half of the month and female sexual desire for the other: dGe-'dun 'Grub, *Legs par gsungs pa'i dam pa'i chos 'dul ba mtha' dag gi snying po'i don legs par bshad pa rin po che'i 'phreng ba*, in *'Dul ṭik rin chen 'phreng ba* (Beijing: Mi-rigs dPe-skrun-khang, 1999), p. 50. (3) The *Vinayavastu*'s *āsaktapṛādurbhāvi pañḍaka* (*'khyud nas ltang ba'i ma ning*), someone who “comes out” (which could either mean becomes aroused or ejaculates) when embraced by another, has a different sense in the *Samantapāsādikā*'s “sprinkled” or *āsitta pañḍaka*, there explained as one who performs oral sex on another and is sprinkled with impurity. Note that the Sanskrit *āsakta* would be derived from the root *ā√sanj* whereas the Pali *āsita* would be derived from *ā√sic*. Yaśomitra aligns himself with the *ā√sic* etymology in naming this the *āsekapañḍaka*, but he does not discuss the term

who are born as either neuters or sexually indeterminate, those who have lost their sexual organ or capacities due to circumstances after birth, those whose sexuality changes every half month (in some versions from male to female and back again), those whose sexuality depends on the initiation of others (or, in another version, having oral sex), and those whose sexuality is engaged by voyeurism. Tibetan sources are familiar with this list but tend to boil down the kinds of *paṇḍaka* (generally translated as *ma ning*) into three main subtypes: the asexual neuter, the hermaphrodite, and the changing “half-monther.”¹⁷ It should be noted that neither *paṇḍaka* or *ma ning* are code words for homosexuality as such, as some have argued, and in any event same-sex sex is not singled out as distinct from other kinds of proscribed sexual activity in the Vinaya.¹⁸ This is not to say that those who practice certain types of what is considered deviant sex are not also named by the label of *paṇḍaka*. As just seen in the list of five, they are, but there is no sign that the conception of such deviance

further. We should also compare here *Suśrutasamhita*’s sexual condition called *āsekyā*: see n. 15 above. (4) The *Vinayavastu*’s *irṣyāpaṇḍaka* (*ma ning phrag dog can*), a *paṇḍaka* with jealousy, is explained as the voyeur, someone who is aroused by watching the actions of others. This type corresponds to the *Samantapāsādikā*’s *usuyyapaṇḍaka* as well as to the condition of *irṣyati* listed in the Ayurvedic literature (see nn. 14 and 15 above). (5) The *Vinayavastu*’s *āpatpaṇḍaka* (*nyams pa’i ma ning*) someone who becomes a *paṇḍaka* by virtue of adventitious conditions such as illness or surgery corresponds to the *Samantapāsādikā*’s *opakammikapaṇḍaka*. Yaśomitra calls this the *lūna* (mutilated) *paṇḍaka*. For an idiosyncratically Tibetan rendition of the list, see dBang’dus, *Bod gangs can pa’i gso ba rig pa’i dpal ldan rgyud bzhi sogs kyi brda dang dka’ gnad ’ga’ zhiḡ bkrol ba sngon byon mkhas pa’i gsung rgyun gyu thog dgongs rgyan* (Beijing: Mi-rigs dPe-skrun-khang, 1983), p. 410. In general the list remains relatively stable across South Asian and Tibetan Buddhism, but discrepancies indicate some confusion about what the individual types refer to. Type 3 *paṇḍaka* seems more clearly conceived by *Samantapāsādikā*, while type 2 seems more clearly conceptualized in *Vinayavastu*. Yaśomitra understands types 2–4 to suffer various kinds of impairment in the functioning of their sexual faculty (*indriya*), a functioning that is signalled by the ability of the male organ to generate pleasure (in orgasm) and to produce offspring.

¹⁷ *mtshan med pa*, *mtshan gnyis pa*, and *’gyur ba ma ning*. The earliest occurrence of this widely used trio may be the grammatical work *rTags ’jug: Sum cu pa dang rtags kyi ’jug pa*, ed. Zuiho Yamaguchi (Tokyo: Toyo Bunko, 1973), p. 9. It is standard by the time of Zurmkhar-ba Blo-gros rGyal-po, *rGyud bzhi’i ’grel pa mes po’i zhal lung* (hereafter *Mes po’i zhal lung*), 2 vols. (Beijing: Krung-go’i Bod-kyi Shes-rig dPe-skrun-khang, 1989), vol. 1, e.g., pp. 219, 698. As referenced above in n. 11, an almost parallel trio occurs in the Tibetan translation of *Vinayavastu*: *mtshan med*, *mtshan gnyis*, and *gle gdams pa*.

¹⁸ I study monastic prohibitions against sex in “Sex,” in *Critical Terms for the Study of Buddhism*, ed. Donald Lopez (Chicago: University of Chicago Press, forthcoming). It seems that people who desire conventional homosexual sex, whatever that might be, can be ordained and can stay ordained, as long as they do not actually have sex. Exactly the same would be true for people with heterosexual desires. Zwilling, p. 205, destroys his own argument that *paṇḍakas* are homosexuals when he writes, “The *Vinaya*, in fact, goes so far as to distinguish sexual activity between normative males from sexual relations between a socially normative male and a *paṇḍaka*.” Some depictions of *paṇḍakas* do show them engaging in sex with men, as in *Vinayavastu*, pp. 131–32, where it is also specified that a *paṇḍaka* wanted to play the role of the female. Homosexual activity is also suggested in the descriptions of the *Samantapāsādikā*’s understanding of the *āsitta paṇḍaka*; see n. 16 above.

has to do with the sexual identity of the partner. Moreover, at least as much, and perhaps more, than it is about sexual practice, *paṇḍakahood* is also an abnormal physical condition, and indeed both lists of subtypes just mentioned betray an undecidability about what the *paṇḍaka* state most basically concerns—physical traits such as anatomy, virility, and fertility, or certain desires and practices. For all these reasons it is difficult to find one word to adequately translate the full semantic range of either *paṇḍaka* or *ma ning*. In what follows I am simply going to use the Indic or Tibetan term, as appropriate, alternating occasionally with “the third sex,” a phrase also known to contemporaneous Indic sources.¹⁹

III

Now if the class as a whole is difficult to characterize, it is nonetheless excluded as a whole from a variety of Buddhist practices, not only from ordination. A variety of other monastic prescriptions also forbid the *paṇḍaka* and related types from acting as preceptors in ordination ceremonies, and even disqualify them from making donations to begging monks.²⁰ There are also exclusions that go beyond monasticism altogether. Even the otherwise (and famously) inclusive Lotus Sūtra lists the *paṇḍaka* as someone who may not be preached to at all. Along with such other characters as heretics, hunters, magicians, dancers, and pig farmers, the *paṇḍaka* is in the unfortunate class of people whom the bodhisattva is enjoined to avoid, even when performing that most bodhisattva-like activity, teaching Buddhism.²¹ This prohibition seems harsh and surprising indeed; even if one is convinced by yet another exclusion to which the *paṇḍaka* is subject, namely, an inability to meditate (or so claim a number of scholastic works),²² surely such persons deserve at least to hear the Dharma! But another classic Buddhist text, *The Questions of Milinda*, specifies that *paṇḍakas* and hermaphrodites are among those who are not able to understand the Dharma at all.²³

¹⁹ *Trīṭīyaparakṛti* occurs in *Kāmasūtra* and *Nāṭyaśāstra*.

²⁰ *Mahavagga* 1.69, 38.5.

²¹ Leon Hurvitz, trans., *Scripture of the Lotus Blossom of the Fine Dharma* (New York: Columbia University Press, 1976), p. 209.

²² For example, *Visuddhimagga* 5.40–42 (translated in Bhaddantācariya Buddhaghosa, *The Path of Purification*, trans. Bhikkhu Ñāṇamoli, 2 vols. [Berkeley: Shambhala, 1976]) avers that both hermaphrodites and *paṇḍakas* are among those who cannot develop *kasina* concentration, or indeed any kind of meditation at all, due to their defilement and bad kamma. *Abhidharmakośabhāṣya* 4.43 also asserts that neither *paṇḍakas* or *ṣaṇḍhas* are subject to any of the three disciplines (from verse 13: those of monasticism, meditation, and the pure path), nor indeed the absence thereof.

²³ *Milindapañha*, p. 310. The others on this list are similar to those who cannot take ordination: see n. 6 above. But note that *Vinayavibhanga* expels from ordination monks who revile (*sun phyung ba*) *paṇḍakas*—along with, among others, *bhikṣuṇīs* (ACIP text KD000311.INC, p. 15).

The proliferation and seriousness of such exclusions, which imply that the third sex is incapable of any salvific activity whatsoever, distinguish the *paṇḍaka* from the other classes barred from ordination and signal that something special is afoot. That there is a fair amount of confusion regarding this is evident from the few terse explanations concerning the exclusions that are offered, for they are neither consistent nor satisfying. Abhidharma tradition reasons that a certain lack of restraint (*asaṃvara*) is required in order for there to be a basis for a vow of restraint. The idea seems to be that the *paṇḍaka* does not have enough sinful willfulness to have something to take a vow against.²⁴ Yet in the same breath the *paṇḍaka* is accused of just the opposite problem: having too much and too unstable, desire.²⁵ And the same could be said of the monastic list of five: again, that list includes both those whose sexuality is limited physiologically and those who have perverse or extra sexuality.

If we could separate the *paṇḍaka* class into its component parts we could at least solve this last contradiction. It would be more logical if it were only the neuter *paṇḍaka* who could not take vows due to the absence of a desire to transgress (i.e., if one accepts the basic premise of this oppositional logic at all). Similarly, it should only be the *paṇḍaka* with either both or changing sets of sexual organs who is plagued by excessive or indecisive desire. But this still does not solve the most puzzling problem of all here. For it is not clear why these various *paṇḍaka* qualities are considered such a liability in the first place. Is it not a virtue in Buddhist tradition to be poor at discriminatory thought, the very attribute that so oddly disqualifies the *paṇḍaka* from meditation?²⁶ And would not the equanimity in the *paṇḍaka*'s lack of strong desires or intentions to transgress be a good thing, an advantage, rather than a failing, disqualifying someone from the Buddhist order?

²⁴ *Abhidharmakośabhāṣya* 4.43: *pāpe 'pyasthirāśayatvāt*. See also *Abhidharmakośabhāṣya* 4.97, where it is added that the *paṇḍaka* does not have strong enough feelings for its parents for it to be a candidate for violating the rules against the serious (*ānantarya*) crimes of patricide, etc. But cf. n. 6 above, regarding the listing of the *paṇḍaka* right next to committers of these crimes in the lists of ordination exclusions.

²⁵ *Abhidharmakośabhāṣya* 4.43 attributes this excess to having the desires of both sexes: *ubhayāśrayakleśādhimātrata*. See also n. 9 above.

²⁶ This connection is especially clear in Tibetan sources. For example, 'Jam-dbyangs bZhad-pa (1648–1721), *bSam gzugs kyi snyoms 'jug rnam gyi rnam par bzhaḡ pa'i bstan bcos thub bstan mdzes rgyan lung dang rigs pa'i rgya mtsho skal bzang dga' byed* (photocopy of block print), pp. 21–22, attributes the *paṇḍaka*'s inability to make distinctions (*so sor rtog pa mi bzod pa*) to its inability to attain meditative absorption, along with its lack of shame and circumspection (*ngo tsha* and *khrel yod pa*). The *paṇḍaka* shares these problems with the inhabitants of Uttarakuru. Thanks to Jeffrey Hopkins for this reference. Compare *Milindapañha*, pp. 94–95, which maintains that *paṇḍakas* are among those who cannot keep a secret because of being fickle and indecisive. *Abhidharmakośabhāṣya* 4.80 makes similar points about the *paṇḍaka*'s inability to establish, and therefore also to destroy, virtuous roots.

IV

Given the seemingly universal negative gloss for the third sex category, it is surprising to discover that a positive estimation of *pañḍaka* features did indeed come to be recognized, and in a variety of Buddhist traditions, outside monasticism. Such a recognition seems to have emerged gradually, but we can discern a developing sense that something about the *pañḍaka* class actually mirrors virtues that Buddhism extols.²⁷ This development becomes notable largely in Tibetan sources, but it builds on associations and suggestions found in Indian Buddhism as well.

Most readily, there is the third sex's middle-ness—its equal proportion of its parents' seeds, its fetus sitting in the middle of its mother's belly, and so on²⁸—that comes to be associated with the highly esteemed Middle Way in Buddhism. A number of early Tibetan manuals, for medical practice as well as from the yogic tradition, make just this point, extolling the middle-ness of the *pañḍaka* class and using it as a marker of stability and equanimity: (here citing the Tibetan term,) *ma ning* is called the abiding breath between male exhalation and female inhalation;²⁹ *ma ning* is the stable psychic wind, as opposed to the shaking male wind or agitated female wind;³⁰ *ma ning* is the balanced yogic channel, as opposed to the too tight male channel, and the too loose female one, and so on.³¹

A distinctive development in Tibetan medicine really drives home, with spectacular effect, a Buddhistically positive association with the *pañḍaka* class. Here influenced by the Chinese diagnostics of pulse reading, Tibetan medicine introduced an innovative threefold (rather than the Chinese twofold) division of pulse types: male, female, and *ma ning*. The root Tibetan medical text sets the standard: a male pulse is thick and throbs roughly; a female pulse is fine and throbs quickly; and a *ma ning* pulse is steady, slow, and pliable.³² Given the medical tradition's high valuation

²⁷ I am preparing a separate article on the distinctive Tibetan construal of the *pañḍaka/ma ning* class.

²⁸ *Carakasamhitā Śārīrasthāna* 2.18, 24–25.

²⁹ Yang-dgon-pa rGyal-mtshan dPal, *rDo rje lus kyi sbas bshad*, in *The Collected Works (Gsun 'bum) of Yan-dgon-pa Rgyal-mtshan-dpal* (Thimphu: Kunsang Topgey, 1976), 2:457. Note that this work is also published in *gSang chen thabs lam nyer mkho rnal 'byor snying nor*, ed. Dor-zhi gDong-drug sNyems-blo (Beijing: Mi-rigs dPe-skrun-khang, 1991), which incorrectly identifies the author as a Sa-skyapa.

³⁰ Sa-chen Kun-dga' sNying-po, *Lam 'bras gzhung bshad sras don ma*, in *Lam 'bras slob bsad: The Sa-skyapa Teachings of the Path and the Fruit, according to the Tshar-pa Transmission* (Dehra Dun: Sakya Center, 1983), pp. 4, 266–67.

³¹ Yang-dgon-pa, p. 454. Also, an early medical text, gYu-thog Yon-tan mGon-po's *sKor tshoms stong thun bcu gcig las gnyis pa chu'i stong thun*, in *Gyu thog cha lag bco bgyad: A Corpus of Tibetan Medical Teachings Attributed to Gyu-thog the Physician* (Delhi: Topden Tshering, 1976), 1:343–50, can speak of three kinds of digestive juices—male, female, and *ma ning*—without explaining these terms; that suggests that this gendered tripartite taxonomy, in which the *ma ning* category stands for a middle point along a continuum, was already well known.

³² rGyud bzhi, p. 560; *Mes po'i zhal lung*, 1:699.

of harmony and equilibrium, we are not surprised to see that this middle *ma ning* type gets such a good prognosis—a person with this pulse will live long, have few diseases, high status, and will be looked on favorably by people in power.³³ But nothing shows more how far the ostracized *paṇḍaka/ma ning* class has come than the astounding Buddhist superlative that the text goes on to provide: the *ma ning* pulse is glossed “bodhisattva pulse”—the pulse of the exalted enlightened beings who by the time of the Mahāyāna practically share the same status as a buddha.³⁴

This is quite a transition from the pariah status of the *paṇḍaka* class in the Vinaya, but like much else about this elusive category, the reason for its identification with the bodhisattva is never explained. One can find a few clues, however. One is from Buddhist Abhidharma notions about the moment of a baby’s conception. The classic account, famously anticipating Freud’s Oedipal complex, says that the little being who gets sandwiched between the seeds of a man and woman in coitus, will, if it is to be a boy, lust for his mother-to-be and resent his future father, while the girl-to-be will do the opposite, lusting for her father and hating her mother.³⁵ Yet when Buddhist scholastics went on to describe the moment of conception for a bodhisattva, who takes birth deliberately and out of compassion, they stipulated that this little being would realize that the mating couple is to be its parents and not the proper object of sexual desire or jealousy, and therefore would have affectionate love equally for both of them.³⁶ This distinctive specification is echoed in an early Tibetan tantric source that describes the same moment, but this source is accounting not for the bodhisattva-to-be but rather for the *ma ning*-to-be. The scene that is depicted may be indebted to the scholastic description of the bodhisattva embryo: the *ma ning* too has equal love for both parents.³⁷

If the *paṇḍaka*’s association with equanimity parallels the bodhisattva’s egalitarianism, the sex-changing *paṇḍaka* in particular exhibits another kind of affinity with the bodhisattva. Sex change in Buddhism is a rich issue deserving of a study on its own; the topic will come up again below. Note for now that the Lotus Sūtra is one of the first to associate it

³³ But apparently those below will resent them and—a curious detail—their male relatives will arise as enemies: *rGyud bzhi*, p. 560.

³⁴ Although the medical tradition usually uses the term *byang chub sems rtsa*, which could be rendered “*bodhicitta* pulse,” the root text *rGyud bzhi* does use the longer phrase *byang chub sems dpa’ ir rtsa*, “bodhisattva pulse,” on p. 560; repeated also in *Mes po’i zhal lung*, 1:700. The several occurrences of the abbreviated term *byang chub sems rtsa* in the root text could be explained by metrical considerations.

³⁵ Robert Kritzer, pp. 4–5, in “The Four Ways of Entering the Womb (*garbhāvakrānti*),” *Bukkyo Bunka* (Buddhist culture) 10 (2000): 1–41.

³⁶ See Kritzer, pp. 18–19, citing the *Vibhāṣā*.

³⁷ gNubs-chen Sangs-rgyas Ye-shes, *Sangs rgyas thams cad kyi dgongs pa ’dus pa’i mdo’i dka’ ’grel mun pa’i go cha lde mig gsal byed rnal ’byor nyi ma*, in *Rñin ma bka’ ma rgyas pa*, ed. H. H. Bdud-’joms Rin-po-che (Darjeeling: Dupjung Lama, 1987), 52:131–32. I am grateful to Jake Dalton for this reference.

with the bodhisattva. The compassionate bodhisattva must be able to appear in any appropriate body so as best to teach and enlighten the full range of sentient beings; such a deliberate display often involves sex change, along with occupation, class, and even species change.³⁸ Now in contrast to this exalted power, the cyclical sex changes of the *paṇḍaka* appear to be involuntary, not deliberate or compassionate. Nevertheless at least one development in Buddhism recognized the parallel. It comes up in yet another striking step in the refiguration of the sexual pariah: a rare and intriguing example of the third sex personified as a tantric Buddhist deity: mGon-po Ma-ning. Actually the texts give little indication of the grounds for construing this mysterious and probably uniquely Tibetan form of the famous Indic deity Mahākāla as in fact of the third sex. And since the deity is usually pictured fully dressed, and often standing next to a female consort, there is some reason to wonder whether it is meant to be a *ma ning* as such. But there are a few terse suggestions that do indicate its unconventional sex. One is that the special talent of this deity resides precisely in its lack of determinate sexual identity. As one visionary writes, “It is because [this deity] is not definitively either male or female that it is able to accomplish the work of all buddhas.”³⁹ In other words, the *ma ning* deity has a sexual indeterminacy, an indeterminacy that mirrors an enlightened flexibility in its salvific power.

Connectivity, a virtue related to flexibility, also comes to be attributed to the third sex class. We can discern such an idea in the distant domain of Tibetan grammar, which nonetheless remains under the influence of Buddhist tropes. When discussing the way that consonants interact with other consonants, letters are divided into the categories of male, female, and *ma ning*, along with subtypes, which for the *ma ning* are given as “no signs” (Tib. *mtshan* and Skt. *linga* both mean either linguistic sign or genitals), “two signs,” and “changing signs”; in other words, the familiar Tibetan trio for types of *paṇḍaka* persons. The point requires more discussion than space permits here. Suffice it to say for the present context that the flexibility implied by the *paṇḍaka* features of having two signs or changing signs is deployed in Tibetan grammar as a metaphor to show how sounds can join with other sounds (making for a kind of intrasyllabic *sandhi*), which makes possible phonic connection and indeed oral articulation altogether.⁴⁰ Such connectivity suggests still other enlightened

³⁸ Hurvitz (n. 21 above), pp. 307–8, 314–15.

³⁹ rDo-rje Gling-pa, *dPal ye shes kyi mgon po ma ning nag po'i gsang ba 'khor lo'i rgyud*, in *dPal ye shes kyi mgon po ma ning nag po'i chos skor* (Thimphu: Kunzang Tobgyel, 1984), p. 93: *pho mo gang du'ang ma nges pas / sangs rgyas kun gyi 'phrin las bsgrubs*.

⁴⁰ This argument is based on my reading of the *rTags 'jug* (see n. 17 above) and its commentaries, particularly Si-tu Pan-chen Chos-kyi 'Byung-gnas (b. 1699/1700, d. 1774), *Yul gangs can pa'i brda yang dag par sbyor ba'i bstan bcos kyi bye brag sum cu pa dang rtags kyi 'jug pa'i gzhung gi rnam par bshad pa mkhas pa'i mgul rgyan mu tig phreng mdzes* (Dharamsala: n.p., 1960), pp. 74–80. It concerns the discussion of suffixes in Tibetan; in fact all

virtues for the third sex category—one even counters the problematic exclusiveness of the Vinaya. This turns up again with the tantric deity mGon-po Ma-ning, whose power is said to reside in its *inclusiveness*. As one of its proponents wrote, “It is because it is complete with all three—male, female and *ma ning*—that [the mGon-po Ma-ning tantra] is held to be the tantra of the great congregation.”⁴¹

It is not difficult to see why the middle term—which covers the gray area in between two opposite poles, and which, precisely because of its lack of strict allegiance, can assume features of either of those two poles—could come to symbolize inclusiveness. But the implications are far-reaching. They could be seen to touch on some of the most foundational ideas in Buddhism. For one exceptional example, consider the fact that a key Buddhist buzzword “nondual” is used to refer to the third sex category in both the Tibetan tantric and medical writings that valorize the category.⁴² Now the locus classicus for the notion of nonduality in Buddhism is of course Buddhist philosophy, nowhere more paradigmatically worked out than in the attack on essentialism by the Buddhist philosopher Nāgārjuna. One of the principles that Nāgārjuna pretends to respect in this attack is the law of the excluded middle—the law that an entity must either be *a* or *not-a*; there is no middle ground—but actually his respect of this law is part of his *reductio ad absurdum*. In other words, he does mobilize the law of the excluded middle—for example, in his chapter in *Madhyamakārikā* on causation—but ends up showing that this law only pertains to positions that make dualistic, essentialist (and thereby false) assertions. If in fact one drops all such dualistic assertions, the law of the excluded middle becomes moot, or better, irrelevant.

What better instance of an actual “excluded middle” than the reviled *paṇḍaka*? Or so one might ask. Yet, inspired by the way that Nāgārjuna (and several Western philosophers too)⁴³ has called the law of the excluded middle into question, I submit that the third sex class can also be read as

letters are subject to changing degrees of strength or weakness depending on the varying phonic contexts created when they join with various suffixes, but only the terminology of the *ma ning* letters explicitly names that changeability. I am presenting this argument in detail for another publication.

⁴¹ rDo-rje Gling-pa, p. 92: *pho mo ma ning gsum tshangs bas / 'dus pa chen po'i rgyud du bzung*.

⁴² For example, *Mes po'i zhal lung*, 1:699; cf. rTse-le sNa-tshogs Rang-grol, *dPal ye shes kyi mgon po ma ning nag po'i srog dbang bka' gtad zab mo'i las rim*, in 'Ja' tshon pod drug gi dban dpe, by rTse-le sNa-tshogs Rang-grol and Nag-dban mthar-phyin (Leh: Tobdan Tsering, 1978), pp. 377–78: *pho rgyud dang mo rgyud kyi rigs dang sde tshan gang yang 'dis mi 'thul ba'i gnyen por ma gyur pa gcig kyang med cing thabs shes gnyis su med pa'i ye shes kyi sku yin pa na ma ning gi mtshan du btags pa yin pas*.

⁴³ See, e.g., Michael Dummett, *Truth and Other Enigmas* (Cambridge, Mass.: Harvard University Press, 1978); for a lucid introduction to some of the mathematical issues involved, see Alexander George and Daniel J. Velleman, *Philosophies of Mathematics* (Oxford: Blackwell, 2002), chap. 4.

functioning to undermine its own exclusion. Such a reading would have particularly rich significance for gender theory. To recognize a middle term, with its ability to breach gaps, to connect, and to transform, is to illustrate by its very mucosity (as feminist theorist Luce Irigaray might put it) the impossibility of any definitive demarcation, least of all exclusion.⁴⁴ If indeed the two sexes are not bipolar extremes but rather are understood to be on a continuum—that is, if they do not have strict boundaries that, once crossed, become the opposite of what they started with—then they do not exclude a middle term, precisely because they are not “essential,” to use the Buddhist parlance, in themselves. By the same token, just to name the third or middle term is exactly to call into question any strict separation of the other two. In this way, the same third sex that was defined as the excluded one could be turned on its head to subvert the very notion of excludability altogether.⁴⁵

V

We have come a long way, from the social and ritual arena of Buddhist ordination to the rarified domain of theory—not to mention the fact that the points in the last paragraph were never actually made in historical Buddhist writings at all. But we still need to ask where all this would leave the hapless and excluded third sex people themselves—let alone the hapless female people, the second sex for monastic law, from whom this article took its first cue. The salvific potential of Buddhist logic notwithstanding, we cannot help but notice that the actual conditions of people, alas, do not necessarily improve in the wake of theoretical advancements. Even to argue, as some Buddhist texts actually did do, that all sexual identity is a construct and an illusion, did not historically erase all sex discrimination in Buddhism—far from it.⁴⁶

At the very least, though, the rich theoretical potentials of the third sex category, not to mention its actual valorization in some corners of Buddhist history, makes us wonder all the more pointedly: why did the category remain a problem for monasticism? But to answer this question, the first thing we need to realize is that despite all those positive profiles of the third sex that were just marshalled—not just for philosophy but also in tantric physiology, grammar, even sacred iconography—none of these were really about actual third sex *people*: rather, in each case the third

⁴⁴ The notion of mucosity is developed in Irigaray's essay “Sexual Difference,” in *The Irigaray Reader*, ed. Margaret Whitford (Oxford: Blackwell, 1991), p. 175.

⁴⁵ I would submit that the concept of a third sex accomplishes such subversion more effectively than does the often-cited goddess chapter in *Vimalakīrtinirdeśa*, which endeavors also to show the provisional nature of sexual identity, albeit merely by demonstrating it through magical fiat.

⁴⁶ This point was first made in sustained form by Paul (n. 1 above).

sex stands for a principle, a concept, a category—a gender. This realization will bring us to the heart of the Vinaya's litany of sexual exclusions.

Consider first, for another moment, the Tibetan medical pulse diagnostics: just where one would most expect to find actual empirical bodies. But even here, we are tipped off to the fact that it may not be sexual anatomy that is being described by the use of the term “nondual” to gloss the *ma ning* pulse—and now I will add that these same passages also connect male pulse with “skillful means” and female pulse with “gnosis.”⁴⁷ For these very terms—“gnosis,” “skillful means,” and “nonduality”—indicate that what the doctors are really looking for when they read someone's pulse is not sexual anatomy but rather the presence, somehow, in their patients of one of these three very classic tantric Buddhist virtues: gnosis, skillful means, or nonduality.⁴⁸ This is only confirmed further when the root text quite explicitly distinguishes body type from pulse type. Women can have male pulses, men can have female pulses, and both women or men can have the bodhisattva/*ma ning* pulse.

This is not to say that the pulse tradition has nothing to do with the actual sexual anatomies of bodies at all. For one thing, the pulse/sex split is not altogether neat. The medical writers still maintain that *most* males will have a male pulse, females a female pulse, and *ma nings* a *ma ning* pulse.⁴⁹ That is because the primary issue concerns the predominance of one of these tantric patterns—that is, either skillful means, gnosis, or nonduality—in one's basic energy. Or perhaps we could call it character. This character pattern then produces certain physical manifestations, in accordance with classic tantric conceptions. So, people with dominant skillful means will tend to have male bodies, and also a male pulse. And so on. Still, most medical commentators maintained the possibility of deviance: “From one perspective,” Zur-mkhar-ba Blo-gros rGyal-po (sixteenth century), one of the most influential commentators, writes, “it is uncertain.”⁵⁰ Here he displays the empirical bent of the medical tradition after all, for the fact of the matter is that Tibetan doctors regularly find persons whose pulse character does not match their sexual anatomy; this is already asserted by the root medical text.⁵¹ But this finding proved controversial, and it prompted Zur-mkhar-ba to creatively adapt an old Buddhist scholastic term, “mind-continuum” (Tib. *sems rgyud*), for his own purposes, making it mean something like what we would call “personality,” and which is something, he asserts, that can change during a person's lifetime. He

⁴⁷ *Mes po'i zhal lung*, 1:699.

⁴⁸ Several medical writers, including Gong-sman-pa (fifteenth century) and bKra-'bum-pa (eighteenth–nineteenth century), make the point that the characterizations of a pulse as *ma ning* and so on are metaphorical (*dpe don sbyar ba*): dBang-'dus, pp. 410–11.

⁴⁹ *Mes po'i zhal lung*, 1:699–700.

⁵⁰ *Mes po'i zhal lung*, 1:700.

⁵¹ *rGyud bzhi*, p. 560.

distinguishes this mind-continuum from basic sex (which he labels with another scholastic category, *indriya* [Tib. *dbang po*]) and suggests that the latter cannot change. To drive home the distinction he proclaims, “There can be a woman who possesses a man’s mind-continuum, but that does not automatically mean that she has actually becomes a man.”⁵²

It is certainly striking to see a debate on the third sex category lead to the conclusion that women can have male personalities. And indeed the pulse doctrine has valorized deviation all along: men who develop a female pulse will be healthy and live long, the root Tibetan medical text proclaims; and women who have male pulses will be powerful and bear many children.⁵³ In other words, we can say that Zur-mkhar-ba in effect introduced, with his “mind-continuum” category, a working notion of gender. And this gender-like category of mind-continuum is especially germane for our purposes in this article. For in breaking the bounds of strict anatomical definition and allowing for flexibility and deviance, such an idea brings the very inflexibility of the Vinaya into high relief. One is tempted to propose, at the very least, that the Vinaya would have been well served by the clarity attained by the physicians: anatomical sex and personal qualities—gender, if you will—can be separated. At the very least, it seems unfortunate for the Vinaya to allow anatomy to become so determinative of spiritual value, to assume so simplistically that someone whose sexual organ was ambiguous would themselves be of ambiguous, or changing, or unreliable moral worth, incapable of taking vows or even practicing the Dharma at all.

But now this thought prompts one to go back for another look at the anatomy put forward by the Vinaya. For it is still not entirely clear why a true neuter, a person who purportedly lacks sexual organs completely, should be classed in the same category as a person who has both male and female organs, at least on biological grounds. Nor is it evident why sexual dysfunction belongs in the same class: it should not necessarily be the case that the “halfer”—the changing *pañḍaka*—is not fully sexually active, and the same can be said of the hermaphrodite for that matter (and

⁵² *Mes po'i zhal lung*, 1:699. Zur-mkhar-ba’s use of these terms differs from their sense in the *Abhidharmakośa*. The Tibetan *sems rgyud* would be equivalent to the Sanskrit *cittasānti* as in *Abhidharmakośa* 3.3, but the meaning there is very general, referring to all mental activity and capacity, with no mention of gendered features. *Indriya* does serve as a label for male and female sexual identity in the *Abhidharma*, where it seems to be a basic force that produces, respectively, male or female genitals along with other gender-specific features: see, e.g., *Abhidharmakośabhāṣya* 2.1b. See also Zwilling (n. 11 above), p. 206, discussing Buddhaghosa. However, in both Sanskrit and Tibetan there is a certain slippage whereby *indriya* or *dbang po* sometimes refers to the sexual organ, particularly the male organ, as such. An example would be Yaśomitra’s definition of the castrated *lūnapañḍaka* as one whose *indriya* is cut (*cheda*): *Sphuṭārthā*, p. 94. The relation of *indriya* to sexual identity merits more study.

⁵³ *rGyud bzhi*, p. 560.

as already mentioned, *paṇḍakas* are often pictured as being oversexed). And then even people whose *paṇḍaka* state is not innate but acquired, for a whole variety of nonbiological reasons, come to be included in the class. In short, this third-sex *paṇḍaka* category, rather than being consistently or coherently defined, is starting to look more than anything like merely a loose catchall for an ever-expanding array of sexual aberrations on ever-shifting grounds—even psychological and social ones.

And yet this very catchall character is actually very significant, for it suggests a theoretical unity in the class after all. In other words, perhaps we can see that the Vinaya's conception of the *paṇḍaka* is, unwittingly, a gender category itself. Even though there are attempts to specify the anatomy of some of the forms of *paṇḍakahood*, the category as a whole stands most centrally for a conceptual class, to wit, a class of people whose universal characteristic is simply to be unspecifiable and aberrational. Or to put it another way: taken as a whole, *paṇḍaka* is the category of the uncategorizable. And such a category is very relevant for Buddhist monasticism indeed.

Not only does it tell us that even for the Vinaya, the *paṇḍaka* was a conceptual category after all, rather than representing a precise or specifiable anatomical condition of particular persons. We should also note that such a gendered conceptual category has a very special meaning, one that is quite different from the tantric gender metaphors that we saw in the medical case. While for medicine and tantric yoga the third term signifies balance, flexibility, and health, I propose that for the Vinaya it is the aberrationality of the third sex that has the most salience, precisely because of its dissonance with the dominant ideology of the Vinaya. For if indeed the third-sex class does stand for sexual aberration and uncategorizability, it is no wonder that it was such a pariah in the Buddhist monastic world. Why do I say that? Let us remember what the Vinaya is about.

The Vinaya represents the laws of a community of renunciates. These are people who have left home, changed their identities profoundly, and sworn off many things: taking what is not given, depriving any being of life, bragging about attainments, handling money, causing discord, and so on, all codified in a strict and extremely detailed set of rules. Arguably, the most important regulation, and the one considered the most difficult of all to maintain, is sexual abstinence—this is obvious from the premier place that sexual regulation has in the monastic lawbooks.⁵⁴ And yet it is far from fully clear what actually constitutes such a transgression. If one is raped, has one broken the vow never to have sex? If a monk has an unintentional emission during sleep, does that break the vow? What if he takes no action overtly, but passively enjoys an accidental encounter? Is

⁵⁴ This point and the following are argued in Gyatso (n. 18 above).

it a question of intention or of what the body actually does? Are there gray areas, half-transgressions, which deserve repentance but not expulsion? Actually, such nuanced and tortured questions accompany many of the regulations in the Vinaya, not just those about sex. Read the Vinaya literature from its earliest texts onward: you cannot fail to be impressed with the utter preoccupation, nay, obsession, with trying to pin down strict dualistic distinctions. The Vinaya struggles over and over to make it clear in just what cases a transgression really *is* a transgression, exactly what kind of transgression, how it is determined that it has taken place, and precisely what or who is responsible.

And so if the *paṇḍaka* class most basically is defined as people who are not definable, who are not definitively either a male or a female⁵⁵—and especially if, as a medical writer so pertinently put it, the *ma ning* is “the one who has no opposite” (*go ldog*)⁵⁶—no wonder such a person in its very undefinability would have represented an abomination, as Mary Douglas surely would say. The *paṇḍaka* is an abomination, then, not to the doctors, but to the monastic legalists, because the very project of the Vinaya depends on exact definition, and decision, and vow-taking, and the distinction between purity and defilement. The one whose principal defining feature is to be “whatever” in this way *had* to be excluded from the monastic order.

VI

It is far from an innovation, then, for the Tibetan pulse diagnosticians to have treated the third sex as a metaphor or idea rather than a specification about actual people; it had functioned as such all along in the chapters of Buddhism we have looked at. What *is* an advance on the medical side, however, is the recognition that characteristics associated with one sex can be exhibited by people of the opposite sex. In other words, it is the heuristic separation of sex and gender (not unlike one of the foundational moves of modern feminism) that has liberating potential both for the third—and now we can see that we could call it either sex or gender—as well as the second. But before going further, I must caution against too simplistically faulting the Vinaya out of hand for its failure to make that separation, for its conflation of body and meaning, and for placing such symbolic importance on the physical appearance of purity and disciplined order, especially given the very controversial and ground-breaking posi-

⁵⁵ This is how it is defined in the *Vinayavastu*’s description of the *jātyāpaṇḍaka* (ACIP text KDOOO111.ACT, p. 132) and in Yaśomitra’s gloss of the class of *paṇḍakas* and *ṣaṇḍhas* in general (*Sphuṭārthā*, p. 94); see also *Mes po’i zhal lung*, 1:219: *de gnyis kar ma nges pa ma ning*.

⁵⁶ gYu-thog Yon-tan mGon-po (?), *rTsod bzlog gegs sel ’khor lo*, in *Gyu thog cha lag bco brgyad*, 1:327.

tion in India that Buddhist monasticism represented. This quite understandable and in fact vital concern with public status, which as already noted, was behind the overt androcentrism of the monastic code, also explains the exclusion of sexually marginal persons.

Nor would we want, at least from a feminist perspective, to rule out generically the basic premise proposed both by Buddhist monasticism and meditative traditions that a correlation obtains between body and meaning. Such a correlation was to be explored quite precisely in both yoga and ritual as a way of bringing philosophical and ethical norms into lived bodily and social experience, and it underlies the entire tradition of personal cultivation regarding which Buddhism has made such notable contributions.

So if we must pause before insisting unilaterally that sex and gender must always be rigorously separated—a separation against which feminists themselves have cautioned, if for no other reason than to say that even sexual identity itself has no self-evident reality that is totally free of culture—what we can call for is more precision, at least to separate fact from fiction, especially concerning the material facts themselves. The current Dalai Lama has argued that Buddhism must revise its doctrine when it is contravened by modern science. I would submit that part of the problem we have been examining here is a recurring carelessness in Vinaya tradition about the facts of sex. No less influential a systematizer than Buddhaghosa can proclaim with a straight face that a woman can get pregnant by looking at a man; or by hearing, like the *balākā* bird who gets pregnant by hearing thunder; or by smell, like the cow who gets pregnant by smelling the breath of a bull.⁵⁷ More dismaying yet, in passages that otherwise attempt to be very precise and physicalistic about sexual intercourse, there is an apparent conflation of the vagina and the urethra in some of the early Vinaya material.⁵⁸ These gaffes are surprising given what we have learned from Kenneth Zysk about the central role of the early Buddhist monastic community in developing the systems of Ayurveda, that is, the main Indian medical tradition, overall.⁵⁹

⁵⁷ *Samantapāsādikā, Buddhaghosa's Commentary on the Vinaya Piṭaka*, trans. J. Takakusu and M. Nagai (London: Pali Text Society, 1924), p. 214.

⁵⁸ This is indicated by the repeated use of the label *passāvamagga*, “path of urine,” for the vagina, e.g., *Suttavibhanga* 1.9.1. In the corresponding passage of *Vinayavibhanga*, the Tibetan translation gives *zag byed*, “defiled” for vagina, seemingly readjusting the Sanskrit semantics, and aligning itself with standard Buddhist misogynist views of female sexuality. There seems also to be some ingenious etymological acrobatics at work there: *Mahāvvyutpatti*, entry no. 9227, indicates that *zag byed* corresponds to Skt. *prasrāvaṇa[karaṇa]*, “urine maker.” Normally Tib. *zag* or *zag bcas* translates Skt. *āsrava*.

⁵⁹ Kenneth Zysk, *Asceticism and Healing in Ancient India: Medicine in the Buddhist Monastery* (New York: Oxford University Press, 1991).

Still, fictions are revealing for what they betray. This is especially so for the anomalies of the third sex, which of course have long been recognized empirically, but which nonetheless have historically been subject to distortion and worse in so many societies.⁶⁰ And yet like other such instances, the Vinaya's images of this group—fantastical as some of its members might be—are telling for what they say about the Vinaya's larger notions of sex and gender. So in this final portion of the article I would like to pursue the meaning, and the metaphors, of the Vinaya's third sex/gender just one step further. To consider especially its more outlandish representations will also shed some light on how the Vinaya construes women.

Ponder, then, the sex-changing *paṇḍaka*, a concept in full evidence by the time of several of the Vinaya's systematizers. The image should be connected to other notions of sex change that were beginning to circulate in Buddhism, most notably the often-studied sūtra stories about women who change into men before attaining Buddhahood.⁶¹ Less noticed in Western scholarship is another important subtype, found in Vinaya legal tracts. Salient examples can be found in the set of stories in Buddhaghosa's commentary, such as the one about a monk who wakes up one morning to find his beard and male shape gone, and female features in their place;⁶² or another, from the Mūlasarvāstivāda Vinaya tradition, about a nun who is walking alone down a path and suddenly transforms into a male.⁶³ The point of these passages is ostensibly to lay out the legal implications of a sex change, to reassure the aggrieved monk-turned-female that he (i.e., she) can retain status in the order (albeit now in a nunnery!), or to work out the liabilities if the person changing sex is in the middle of committing an offense that is sex-specific. For instance, the nun walking down the dangerous path is no longer in legal jeopardy when she turns into a male, because only nuns are forbidden to walk alone on deserted paths, not monks. But we might shift our focus for a moment to the underlying premise of these jurisprudential pronounce-

⁶⁰ Gilbert Herdt, ed., *Third Sex, Third Gender: Beyond Sexual Dimorphism in Culture and History* (New York: Zone Books, 1993); Anne Fausto-Sterling, *Sexing the Body: Gender Politics and the Construction of Sexuality* (New York: Basic Books, 2000).

⁶¹ See Paul (n. 1 above); a more recent study is Jan Nattier, "Gender and Enlightenment: Sexual Transformation in Mahāyāna Sūtras" (unpublished manuscript, University of Indiana, 2002).

⁶² *Samantapāsādikā*, 1:273.

⁶³ Mi-bskyod rDo-rje (1507–55) mentions these in passing in his 'Dul ba ñi ma'i dkyil 'khor: *A Detailed Commentary on the Vinayasutra and Buddhist Monastic Discipline* (New Delhi: Eighth Khams sprul Don-brgyud-ñi-ma, 1973), 1:348, with reference to a larger discussion on Mūlasarvāstivāda Vinaya sources. For the rules about what happens when a sex change takes place during an ordination session, see Guṇaprabha's *Vinaya-Sūtra*, sūtras 618–19. dGe-'dun Grub, pp. 381–86, provides a good example of the intricate Tibetan elaborations on the legal implications of various kinds of sex change in the Vinaya.

ments. Since it is only at three sex changes that one must forfeit one's entitlement to monastic status altogether,⁶⁴ it appears that spontaneous sex change once or twice (and this is not about psychology or practice—it is about full anatomical transformation)⁶⁵ is something that is presumed to be a relatively innocuous event!⁶⁶

I have already noted how the sexual instability epitomized by the *paṇḍaka* marks it ineluctably as anathema and pariah for the monastic order. I would now like to add a further and I think important nuance: the same instability also renders the *paṇḍaka* a mirror of monastic fantasies about women. Most obviously, the dreaded sex change, which at least one kind of *paṇḍaka* embodies, has a lot to do with a simple male fear of becoming female; this is grossly apparent in the monastic truism, duly repeated by Buddhaghosa, that male genitals are superior to female genitals. He also expresses the view that male genitals are more stable than female ones: it takes strong negative karma for a male's organs to disappear and only a bit of weak positive karma to reemerge as a female; conversely, even weak negative karma can cause a female to lose her female organs, and strong good karma is required for her to acquire male organs.⁶⁷ But the point can also be made on more general grounds: I am arguing that the *paṇḍaka*'s spectre of looming sex change and capricious sexuality betrays anxieties about uncontrollable sexuality period, and surely no figure is more centrally associated with sexual uncontrollability in Buddhist literature than the female. This is especially true in the Vinaya stories surrounding the celibacy rules, with their repeated cases of women raping monks, exposing themselves, running up to sit on a monk while he sleeps under a tree; even venerable female patrons try to convince monks that the gift of sex is the highest gift a lay donor can offer.⁶⁸ Nowhere is the monastic presumption of oversexed woman more overt than in the striking

⁶⁴ The history of this restriction deserves further study; it does not seem to be present in the early layers of the Pali Vinaya. And it is not the same condition as the *paṇḍaka* who changes sex every month. Three-time change occurs in a list of what prevents ordination in Mūlasarvāstivāda Vinaya tradition in *Vinaya-Sūtra*, sūtra 617. A key early Tibetan Vinaya exegete explains that after three changes one lacks any reliable identity as either a male or a female, and so cannot take ordination in either order; it is also what renders one a *paṇḍaka*: mTsho-sna-ba Shes-rab bZang-po, 'Dul tik nyi ma'i 'od zer legs bshad lung gi rgya mtsho (Beijing: Khrun-go'i Bod-kyis Shes-rig dPe-skrun-khang, 1993; reprint, 1998), p. 214.

⁶⁵ The only hint to the contrary that I have found is in dGe-'dun Grub's characterization of the half-month *paṇḍaka*: see n. 16 above.

⁶⁶ It also does not render one a *paṇḍaka*: mTsho-sna-ba, p. 214.

⁶⁷ He also grants that for both sexes, the disappearance of their original genitals is a result of bad deeds and the growth of genitals of the opposite sex is a result of merit; in this he seems to be most concerned about the undesirability of having your genitals change, no matter what you are originally, and also to assume that to be left with no genitals at all (i.e., to be a *paṇḍaka*) would be a bad fate indeed. *Samantapāsādikā*, 1:274.

⁶⁸ A paradigmatic set of examples may be found in the first section of the *Suttavibhaṅga*.

discrepancy in the monastic rules whereby any erotically prone physical contact with a man spells a nun's irreversible expulsion from the order, while a monk will only be expelled if he has full-fledged sexual intercourse.⁶⁹

So sexual uncontrollability is a feature common to both *paṇḍaka* and woman. But that is not the only "female" quality that I find refracted in the *paṇḍaka*. There are even reasons to suspect that in some respects the second and third sexes/genders were virtually equated. My attention is caught by the Vinaya lists of characteristics that disqualify a woman from ordination. There are various versions of this list, but most instances provide more kinds of sexual anomaly than we find in the parallel rules on male ordination. The list amounts to a description of the class of female *paṇḍakas* (even though at this point the term is but one member of the list); to wit: if she is without sexual organs, if she has defective sexual organs, if she is bloodless, or has stagnant blood, or is always dressed (*dhuva cola*), or is dripping, or is deformed (*sikharāṇī*), or a woman *paṇḍaka*, or a manlike woman (*vepurisika*), or one whose genitals are joined (*sambhinna*),⁷⁰ or is a hermaphrodite (*ubhatovyañjana*); in any of these cases she must be refused ordination.⁷¹ In fact this list appears to be one of the most detailed elaborations of excluded sexual anomalies in the early strata of the Vinaya tradition altogether, apparently predating the fivefold *paṇḍaka* taxonomy. And it is suggestive indeed to realize that the most detailed early portrait of the anomalous sex that we have is of the anomalous-sex-as-female rather than as-male, especially when we remember that in virtually every other respect the Vinaya takes the male as the norm.

But there is an even more telling clue to add here: at least in its Pali version, this very same list of female exclusions is rehearsed elsewhere in the Vinaya code as a set of abuses to which men, on the whole, are prone to heap on any woman.⁷² In other words, the very same portrait of

⁶⁹ A brief comparison of *bhikṣu* and *bhikṣuṇī* precepts is provided by Hirakawa (n. 2 above), pp. 38–42; also, Chatsumarn Kabilsingh, *A Comparative Study of Bhikkhunī Pāṭimokkha* (Varanasi: Chaukhambha Orientalia, 1984).

⁷⁰ This seems to mean that her anus and vagina are joined. The term is also used for a kind of sexually inadequate male: see n. 11 above. It is also listed as an illness in *Mahāvīyūtpatti*, entry no. 9514; it is the only one among the excluded sexual anomalies to be included here.

⁷¹ *Cullavagga* 10.17.1; *Samantapasādikā*, p. 548. A similar list, including the "woman *paṇḍaka*" is found in Mahāsāṃghika Lokottaravāda Vinaya tradition: see Hirakawa, p. 61, but the "quasi-Prakrit-cum-Sanskrit" (Roth [n. 2 above], p. lx) version in Roth, p. 33, is quite different from the Chinese and hard to construe. A Sarvāstivāda version is found in C. M. Ridding and L. de la Vallée Poussin, "Bhikṣuṇī-karmavācānā, a Fragment of the Sanskrit Vinaya," *Bulletin of the School of Oriental and African Studies* 1 (1917–20): 131. The various lists of female sexual anomalies are interesting and deserve further study; I have not yet located one in Mūlasarvāstivāda Vinaya texts, but most of the members of the list, along with many of the other *antarāyika* states, are included in *Mahāvīyūtpatti*, sec. 27.

⁷² *Suttavibhaṅga Saṃghādisesa* 3.3.1.

the sexually excluded class for monasticism also served as a disparaging portrait of women in general. But while in the first instance the monk preceptor is ritually entitled to interrogate a fledgling nun about her private parts and menstrual cycle in order to determine her eligibility for ordination, in the second context it is clear that the list of abuses refers rather to the kinds of afflictions and monstrosities that render a female an unacceptable—and also infertile—mate, hence men's tendency to ridicule such women.

Is the *paṇḍaka* then just a caricature of what the male finds unacceptable in the opposite sex?⁷³ Indeed, it is rather surprising to find concerns about procreation and female fertility reinscribed as criteria for admission to a celibate order, but perhaps it should not be too surprising, given the thoroughgoing androcentrism of the monastic code. Consider, then, one more clue that the third sex stands for the second sex in monasticism. It is in fact to be discerned in several Indic sources, but it becomes especially striking in Tibetan.⁷⁴ This is the very special ambiguity of the term *za ma*, often the Tibetan translation of the Indic *ṣaṇḍha*, one of the other words that, as already seen, names the third sex.⁷⁵ While all of those terms, including *paṇḍaka* itself, can refer to both a sexually abnormal male and a sexually abnormal female, *za ma* in Tibetan can additionally denote a normal female.⁷⁶ In this usage the term's semantic resonance implies

⁷³ Also suggesting that the *paṇḍaka* is like a potential and dangerous female sexual partner is a list of those from whom the monk may not beg for alms: prostitutes, widows, unmarried women, nuns, and *paṇḍakas*: *Mahavagga* 1.38.5. For such associations more generally in India, see Will Roscoe, "Priests of the Goddess: Gender Transgression in Ancient Religion," *History of Religion* 35 (February 1996): 195–230.

⁷⁴ An example in Indic sources suggesting that the third sex is like a female is the description of the *ṣaṇḍha* in *Suśrutasaṃhitā Śārirasthāna* 2.41–42.

⁷⁵ Often, like *ṣaṇḍha*, *za ma* denotes a castrated male: *Mes po zhal lung*, 1:698; dGe-'dun Grub, p. 403. The *za ma* state is one of the sexual anomalies that prevents ordination: sometimes it is distinguished from *ma ning*, as in Mi-skyod rDo-rje, p. 403, but it also is often used synonymously with *ma ning*: Krang-dbyi-sun et al., eds., *Bod rgya tshig mdzod chen mo* (Beijing: Mi-rigs dPe-skrun-khang, 1993; reprint, 1998), p. 2443; bTsan-lha Nga-dbang Tshul-khrims, ed., *brDa dkrol gser gyi me long* (Beijing: Mi-rigs dPe-skrun-khang, 1997), p. 792. See also *Mes po zhal lung*, 1:698, quoting Byang-pa bKra-shis dPal-bzang; here Zur-mkhar-ba corrects Byang-pa, arguing that to equate *ma ning* and *za ma* is a mistake and insisting that the *za ma* is someone who has been castrated whereas the *ma ning* is one of the three types: changing, hermaphrodite, or neuter. The passages of Byang-pa to which Zur-mkhar-ba refers are found in *dPal ldan phyi ma brgyud kyi 'brel pa rin po che'i bang mdzod dgos 'dod 'byung ba* (photocopied manuscript), pp. 300–311.

⁷⁶ *Bod rgya tshig mdzod chen mo*, p. 2443; bDud rtsi snying po, p. 375; *Mes po'i zhal lung*, 2:309. Sometimes the term used is *za ma mo*, but I would argue that here *za ma* is in apposition to *mo* rather than modifying it. Sog-po Lung-rigs bsTan-dar (seventeenth century?) confirms the sense of *za ma* as specifically female by defining it as someone whose menstrual discharge comes out every month: *rGyud bzhi'i brda bkrol mnam rgyal a ru ra'i phreng ba'i mdzes rgyan* (Beijing: Mi-rigs dPe-skrun-khang, 1986), p. 296. dBang-dus, p. 529, interestingly explains the slippage by saying that although *za ma* in general refers to a castrated male or someone with diminished desire, the term has come to be a word for female, because (like a woman) such people's experience of sex is that their partners are consummated (*za ba*) when

softness, suppleness, and weakness,⁷⁷ and I take that to be very significant, for it names a key feature of what is wrong with both the female and the third sex, that is, wrong in the particular context of “rigid” monastic discipline. Both the second and third sex are in the end *napum-saka*, to return to the Indic medical term—that which is “not male”—but now we can see that the *paṇḍaka* is also not what the order would like the female to be either. Uncontrollability, instability, indefinability, softness, weakness: these features are common to caricatures of the second and the third sexes alike, rendering the two equally anathema to monasticism.

So why the doubling, then? Why a second second sex? Is it merely an artifact of a system of sexual discipline, a system built on the patriarchal privilege of a first sex defined against a second? Is it just such a system that calls out for a third rubric—to fill out the space in between the first two, a space that serves precisely to signal the danger of confusion and the need to patrol ever more vigilantly the borders? I am even tempted to speculate—and this is the final epiphany for now—that it was the very creation of an other to that other other that allowed the original other in through the door of ordination at all. Or in other words: I would like to suggest that the *paṇḍaka* category functioned as a scapegoat for the threat that woman was believed to pose to the monastic order. This scapegoat would have served to purify the image of woman (at least, “normal” woman) and allow her inclusion after all—even if she remained hobbled by the Eight Heavy rules.

Now if all that is the case, we can be doubly impressed by the third sex’s powers. Not only was it the proxy object of prejudice against non-conventional—that is, not fully male—sex, so that the truly discriminated sex, the second sex, could slip into an otherwise restrictive order. The foregoing theoretical speculation on a “law of the nonexcluded middle” has also revealed that this same third term ironically would work to subvert the very “order” that created it, writing slippage itself eternally into the system. And if that is true, perhaps we have really discovered some good reasons to gloss the *ma ning/paṇḍaka* as the compassionate bodhi-sattva, at least with regard to sex and gender ideals in Buddhist history. Perhaps the light that the curious third-term figure sheds on the nature of sex and gender discrimination will help the monastic community slowly to chip away at its roots, at the very moment that our global society fi-

they experience in themselves the flavor of their desire, while they themselves are unable to arouse their own desiring organ and use it to have sex with others. In this he seems to be implying also that the *za ma* could be a male with what for dBang-'dus is a female sexual orientation.

⁷⁷ Thupten Phuntsok, personal communication, March 2000, Shang-Shung Institute, Conway, Mass. This resonance is reflected in the sense of the term more generally as meaning weak desire or sexual impotence.

nally begins to reckon with the daunting power that our conceptions about gender have. Indeed, those conceptions are proving to be almost as recalcitrant as ignorance and craving themselves, at the very heart of the Buddhist problematic.

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